

3.9 Exceptions

An ENS is not required for the following goods:

- Electrical energy.
- Goods entering by pipeline.
- Items of correspondence.
- Household effects as defined in Article 2(1)(d) of Council Regulation (EC) No 1186/2009 of 16 November 2009 setting up a Union system of reliefs from customs duty, provided they are not carried under a transport contract.
- Goods for which an oral customs declaration is permitted in accordance with Article 135 and Article 136(1) provided they are not carried under a transport contract.
- Goods referred to in Article 138(b) to (d) and (h) or in Article 139(1) which are deemed to be declared in accordance with Article 141 provided that they are not carried under a transport contract.
- Goods contained in travellers' personal baggage.
- Goods moved under cover of a NATO form 302 or an EU form 302.
- Weapons and military equipment brought into the customs territory of the Union by the authorities in charge of the military defence of a Member State, in military transport or transport operated for the sole use of the military authorities.
- The following goods brought into the customs territory of the Union directly from offshore installations operated by a person established in the customs territory of the Union:
 - Goods incorporated in those offshore installations for the purposes of their construction, repair, maintenance or conversion.
 - Goods used to fit or equip the offshore installations.
 - Provisions used or consumed on the offshore installations.
 - Non-hazardous waste from the said offshore installations.
- Goods entitled to relief pursuant to the Vienna Convention on diplomatic relations of 18 April 1961, the Vienna Convention on consular relations of 24 April 1963, other consular conventions or the New York Convention of 16 December 1969 on special missions.
- The following goods on board vessels and aircraft:
 - goods which have been supplied for incorporation as parts of or accessories in those vessels and aircraft.
 - goods for the operation of the engines, machines and other equipment of those vessels or aircrafts.
 - foodstuffs and other items to be consumed or sold on board.